

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2174

By: Pfeiffer

AS INTRODUCED

An Act relating to professions and occupations;
creating the assistant funeral director license;
establishing qualifications and registration for the
license; establishing rules and regulations;
providing for codification; amending 59 O.S. 2021,
Section 396.4, which relates to fees; establishing
the assistant funeral director license fee; and
providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 396.3b of Title 59, unless there
is created a duplication in numbering, reads as follows:

Section 396.3b. A. The term "Assistant Funeral Director" as
used herein means a person who assists a duly Oklahoma licensed
funeral director in one or more of the principal functions of
funeral directing and is actively engaged in such work. An
assistant funeral director must be an employee of the funeral
director-in-charge under whom the employee is registered, and shall
be a person to whom the funeral director-in-charge delegates the

1 responsibility of conducting funeral services, making funeral
2 arrangements, and making interments.

3 B. The State Board may, in its discretion, license assistant
4 funeral directors to each Oklahoma licensed Funeral Director-in-
5 Charge. The Funeral Director-in-Charge shall have only one
6 assistant funeral director. Licensure as an assistant funeral
7 director shall be separate and distinct from registration as an
8 apprentice funeral director and/or embalmer. The Board may issue an
9 assistant funeral director license on successful completion of the
10 Oklahoma Funeral Board law examination, the manner and form of which
11 is to be determined by the Board, and upon the payment of the
12 application fee, which shall include the license fee for the current
13 year or portion thereof, and such application and registration and
14 renewal fee shall be in the amount fixed by the Board in accordance
15 with the provision of Section 396.4 of Title 59 of the Oklahoma
16 Statutes. Before issuing a license to an applicant for an assistant
17 funeral director's license, the Board shall require satisfactory
18 proof that the applicant is capable and trustworthy to act as such
19 and that the applicant is a person of good moral character, has good
20 standing in the community, and is qualified to engage in the
21 business. In determining the moral character of any such applicant,
22 the Board shall take into consideration any felony conviction of
23 such person, but such conviction shall not automatically operate as
24 a bar to licensure. Each person applying for an assistant funeral

1 director's license shall make application and be recommended in
2 writing on forms provided by the Board. The application shall show
3 that the applicant is at least eighteen (18) years of age and shall
4 have at least sixty (60) semester hours of study earned, measured in
5 quarter or clock hours, from a regionally accredited college or
6 university before such license can be issued to the applicant. Upon
7 issuing a license to an assistant funeral director as herein
8 provided, the Board shall cause the licensee to be registered in
9 under the supervision of the Oklahoma licensed funeral director by
10 whom such licensee is employed and under whom such licensee is
11 registered. The funeral director under whom the assistant funeral
12 director has been registered must immediately notify the Board when
13 the licensee has left the director's employ. Upon the reemployment
14 of the licensee by any other funeral director-in-charge, such
15 licensee shall be reinstated by the Board. The work of an assistant
16 funeral director shall at all times be under the supervision and
17 control of the Oklahoma licensed funeral director under whom the
18 licensee is registered. Licenses of assistant funeral directors may
19 be suspended or revoked, or the Board may refuse to issue or renew
20 the same, for any of the reasons and in the manner stated herein for
21 funeral directors' licenses.

22 C. The expiration date of each license shall be December 31
23 annually. Subject to the provisions of this section, each license
24 shall be renewable on an annual basis upon the filing of a renewal

1 application prior to the expiration date of the license and upon
2 payment of the renewal fee.

3 D. The funeral director assistant shall complete continuing
4 education in accordance with the provision of Section 396.5b of
5 Title 59 of the Oklahoma Statutes.

6 SECTION 2. AMENDATORY 59 O.S. 2021, Section 396.4, is
7 amended to read as follows:

8 Section 396.4. A. 1. The Oklahoma Funeral Board shall set
9 fees pursuant to rule for all licenses, registrations, examinations
10 and renewals required by the Funeral Services Licensing Act.

11 2. Until the Oklahoma Funeral Board sets fees pursuant to rule,
12 the following shall be the fees charged for the licenses,
13 registrations, and examinations required by the Funeral Services
14 Licensing Act:

15	Funeral Director License or Renewal	\$75.00
16	Embalmer License or Renewal	\$75.00
17	Registration for Funeral Director/Embalmer Apprentice	\$150.00
18	Extension of Funeral Director/Embalmer Apprentice	\$150.00
19	<u>Funeral Director Assistant</u>	<u>\$250.00</u>
20	Embalmer Examination	\$100.00
21	Funeral Director Examination	\$100.00
22	State Law Examination	\$100.00
23	Funeral Establishment License or Renewal	\$250.00
24	Commercial Embalming Establishment License or Renewal	\$250.00

1	Reciprocal License for Funeral Director or Embalmer	\$150.00
2	Change of Funeral Director in Charge	\$150.00
3	Crematory License or Renewal	\$250.00

4 B. The Oklahoma Funeral Board shall assess Three Dollars
5 (\$3.00) for each disposition performed by the licensed funeral
6 establishment or commercial embalming establishment. The
7 disposition fee shall be payable upon renewal of the license as
8 provided in subsection E of this section and shall be calculated
9 from November 1 of the preceding calendar year to October 31 of the
10 current calendar year for each licensee. For purposes of this
11 subsection, "disposition" means each time the licensed establishment
12 files an original death certificate pursuant to Section 1-317 of
13 Title 63 of the Oklahoma Statutes.

14 C. Fees for funeral director, embalmer, and state law
15 examinations shall be paid prior to the scheduled examination. An
16 examination fee shall not be refundable.

17 D. The Oklahoma Funeral Board is authorized to determine and
18 fix special administrative service fees. Each such fee shall not be
19 in excess of Two Hundred Dollars (\$200.00).

20 E. If any renewal fee required by this section is not paid on
21 or before December 31 of each year, the amount of the fee shall be
22 doubled and if the fee is not paid on or before April 30 of the
23 subsequent year, the licensee shall be in default and the license
24 shall terminate automatically.

1 F. All examinations of the Oklahoma Funeral Board shall be
2 exempt from the Oklahoma Open Records Act in order to maintain the
3 integrity of the examination process. Copies of completed
4 examinations shall only be released upon receipt of a court order
5 from a court of competent jurisdiction.

6 SECTION 3. This act shall become effective November 1, 2025.
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